

MASTER PRIVACY AND DATA PROTECTION MODEL V2.0

FOUNDER APPROVED - CONSTITUTIONALLY ADOPTED - NOT YET LOCKED

Document Control

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Authority Boundary

This Model establishes constitutional direction for privacy and data protection across EquineSync. It does not itself authorize collection of new data, production implementation, schema mutation, migration, permission expansion, processor activation, international deployment, automated deletion, legal-hold execution, biometric processing, targeted advertising, artificial-intelligence training, or public representations of legal compliance.

Any operational or production authority must arise from a separate, scoped, evidence-backed governance directive that preserves the requirements of this Model and all controlling EquineSync canon.

Executive Constitutional Rule

EquineSync shall process personal information only for defined, legitimate, proportionate, and authorized purposes; shall collect and expose no more information than reasonably necessary; shall protect privacy by default throughout the information lifecycle; and shall preserve the dignity, safety, agency, and enforceable rights of the people whose information enters the platform.

Privacy is not a user-interface preference, contractual footnote, or post-launch remediation exercise. It is a design constraint, authorization boundary, trust obligation, and continuing condition of lawful platform operation.

1. Purpose and Constitutional Function

This Model is the controlling constitutional framework for the collection, creation, inference, use, disclosure, access, transfer, localization, retention, deletion, anonymization, export, safeguarding, and governance of personal information within or through EquineSync.

It converts EquineSync founder decisions into durable requirements that govern product design, engineering, operations, customer administration, support, analytics, artificial intelligence, external processing, incident response, and jurisdictional expansion.

This Model must be interpreted to maximize coherent protection across the full EquineSync canon. It must not be read to weaken more protective requirements found in another controlling document.

1.1 Objectives

- Embed privacy and data protection into product and operational design from inception through decommissioning.
- Define who may determine processing purposes and who must follow another party's instructions.
- Protect minors, guardians, riders, owners, workers, providers, and other participants according to their actual risks and relationships.
- Prevent silent secondary use, cross-tenant exploitation, excessive disclosure, and convenience-driven collection.
- Provide rights, remedies, appeal pathways, and accountable human review.
- Support international readiness without making premature compliance claims.
- Create evidence sufficient to demonstrate, test, challenge, and improve privacy governance.
- Protect people whose information is supplied by someone else, including non-account holders, emergency contacts, family members, workers, visitors, and people named in records.
- Prevent privacy risk from emerging through data combination, inference, tracking technology, administrative convenience, corporate transactions, or silent changes in product architecture.

2. Scope

This Model applies to all EquineSync products, services, websites, mobile applications, offline functionality, administrative tools, development and test environments, analytics systems, artificial-intelligence features, exports, integrations, support processes, vendor relationships, and internal business operations that process personal information.

It applies regardless of whether information is stored in structured fields, free text, uploaded documents, images, audio, video, messages, audit events, device data, derived attributes, model outputs, temporary caches, logs, backups, or external systems acting for EquineSync.

2.1 Covered People

- Subscribers, customers, facility operators, trainers, instructors, owners, lessees, riders, guardians, minors, staff, volunteers, contractors, providers, emergency contacts, visitors, prospects, and former users.
- People mentioned in horse, incident, communication, financial, employment, safeguarding, or legal records even when they do not hold an EquineSync account.
- EquineSync workforce members, administrators, support personnel, and authorized representatives.

2.2 Personal Information

Personal information means information relating to an identified or reasonably identifiable natural person. It includes direct identifiers, indirect identifiers, linked or linkable information, pseudonymous information where reidentification remains reasonably possible, and inferences that describe or predict a person's characteristics, behavior, circumstances, relationships, preferences, risks, or likely actions.

Information about a horse is not automatically personal information. It becomes personal information when it identifies, describes, is linked to, or materially reveals information about a person, household, professional, or organization-associated individual.

2.3 Interpretive Definitions

For this Model:

- Processing includes collection, receipt, creation, observation, recording, organization, storage, inference, retrieval, consultation, use, disclosure, transmission, combination, restriction, anonymization, deletion, destruction, or any other operation performed on personal information.
- Controller means a person or organization that determines the purposes and essential means of processing. Processor or service provider means a person or organization that processes personal information for another party under documented authority. Roles may differ by processing activity.
- Individual or data subject means the natural person to whom personal information relates, including a person who does not hold an EquineSync account.
- Minor means a person under eighteen for EquineSync governance purposes. Child may have a narrower legal meaning under an applicable jurisdiction, but the narrower legal threshold does not reduce EquineSync's broader minor protections.
- Guardian means a parent, legal guardian, or other adult whose authority has been verified to the degree appropriate to the requested action. A claimed family, household, billing, or facility relationship is not alone proof of guardianship.
- Sensitive information includes the categories in Section 5 and any information that becomes sensitive because of context, combination, inference, population, or foreseeable harm.
- Pseudonymized information remains personal information where attribution can be restored with additional information. Anonymous information is information that cannot reasonably be linked to an individual using means reasonably likely to be used. Deidentified information is a risk-reduction state and must not be treated as anonymous without a documented assessment.
- High-risk processing means processing reasonably likely to create significant risk to rights, dignity, safety, autonomy, equality, finances, reputation, employment, safeguarding, physical security, or access to essential opportunities.
- Privacy incident means an event that violates or threatens this Model, an applicable privacy obligation, an individual's rights, or an approved processing boundary. A personal-data breach is a privacy incident involving unauthorized or unlawful destruction, loss, alteration, disclosure, access, or unavailability of personal information.
- Tenant means an EquineSync customer environment or other governed organizational boundary. Tenant separation does not eliminate the need for person-, relationship-, record-, purpose-, and field-level authorization.

2.4 Territorial and Jurisdictional Applicability

EquineSync shall maintain a current jurisdiction matrix addressing establishment, residence, targeting, monitoring, employment, contracting, data location, remote access, and other facts that may trigger legal obligations. Contract language or a customer-selected region may not be used to avoid a law that applies on the facts.

Where multiple privacy requirements apply, EquineSync shall implement the most protective coherent rule unless a documented legal conflict requires a narrower jurisdiction-specific treatment. No jurisdictional exception may silently weaken the constitutional baseline for all users.

3. Governing Principles

3.1 Lawfulness, Fairness, and Respect

Processing must have a documented authority and must not be deceptive, coercive, discriminatory, unexpectedly intrusive, or materially inconsistent with the reasonable expectations created by EquineSync's relationships and notices.

3.2 Purpose Limitation

Purposes must be specific enough to govern design and access decisions. Information collected for one purpose may not be reused for an incompatible purpose without a new authority, review, and any required notice or consent.

3.3 Data Minimization

EquineSync shall collect, generate, disclose, and retain only information reasonably necessary and proportionate to the authorized purpose. Optional data must not be disguised as mandatory.

3.4 Accuracy and Context

Material personal information must be capable of correction, qualification, dispute, and contextualization. Opinions, allegations, estimates, and automated inferences must not be presented as verified fact.

3.5 Storage Limitation

Personal information must not be retained indefinitely by default. Retention must be purpose-based, category-specific, jurisdiction-aware, and subject to claims, audit, legal-hold, safeguarding, and historical-integrity requirements.

3.6 Integrity, Confidentiality, and Resilience

Appropriate technical and organizational safeguards must protect against unauthorized access, use, alteration, loss, destruction, exfiltration, or unavailability.

3.7 Accountability and Demonstrability

EquineSync must be able to show what it decided, why it was permitted, who approved it, what safeguards were applied, and whether those safeguards operated effectively.

3.8 Privacy by Design and by Default

Privacy controls must be integrated before processing begins and maintained throughout the lifecycle. Defaults must expose the least information reasonably necessary for the user's role and purpose.

3.9 Human Agency and Contestability

Individuals must have meaningful ways to understand, challenge, correct, appeal, or seek human review of material processing decisions.

3.10 Non-Retaliation

EquineSync and subscribing organizations must not deny core services, degrade treatment, or retaliate because a person exercises a privacy right, refuses optional processing, or raises a good-faith concern, except where the requested service cannot reasonably operate without the necessary processing.

3.11 Best Interests and Heightened Protection

When processing concerns minors, vulnerable people, safeguarding matters, material power imbalances, or information capable of exposing a person or horse to physical harm, the best interests, safety, dignity, and practical ability of the affected person to exercise rights must receive heightened weight.

3.12 Privacy Risk and Harm

Privacy risk includes more than unauthorized disclosure. Assessments must consider loss of autonomy, unwanted observation, chilling effects, manipulation, discrimination, economic or employment harm, reputational harm, family or safeguarding harm, physical danger, identity theft, exclusion, inaccurate inference, loss of confidentiality, and the cumulative effect of combining otherwise ordinary information.

4. Responsibility and Processing Roles

Processing roles shall be determined by actual authority over purposes and essential means, not merely by contractual labels. EquineSync may act as processor or service provider for customer-directed operational processing, as an independent controller for its own platform and legal purposes, or as a joint or separate controller where law and the facts require.

A customer's contractual authority does not permit it to direct unlawful, excessive, deceptive, discriminatory, or canonically prohibited processing.

4.1 Customer-Directed Processing

- The subscribing organization or independent professional may determine legitimate operational purposes within its authorized facility, professional, employment, service, or contractual scope.
- Customer instructions must be documented, within scope, technically supportable, and consistent with law and EquineSync canon.
- EquineSync must not follow an instruction that would materially violate law, safety obligations, platform security, another person's rights, or constitutional prohibitions.

4.2 EquineSync Independent Purposes

- Account administration, authentication, authorization, fraud prevention, abuse prevention, security, reliability, audit integrity, legal compliance, corporate governance, billing administration, and defense of legal claims.
- Aggregate and appropriately protected product analytics and improvement conducted under this Model.
- Investigation of suspected misuse, security events, policy violations, and threats to people, horses, or the platform.

4.3 No Ownership Fiction

No participant owns another person's identity, credentials, privacy rights, private communications, payment details, or unrelated personal history merely because the information appears in a facility or horse-centered record. Record stewardship, authorship, custody, and access are distinct concepts and must remain distinct.

4.4 Activity-Specific Role Allocation

Each material processing activity must identify the responsible controller or controllers, any processor or service-provider role, instruction authority, rights-response responsibility, incident-notification responsibility, retention authority, and dispute-escalation path. A single customer relationship may contain different role allocations for account data, horse records, communications, payments, employee data, security logs, analytics, and support activity.

Role allocation must be reflected consistently in contracts, notices, product behavior, support procedures, processing records, and audit evidence. A contract label that conflicts with actual decision-making authority must be escalated for correction.

5. Data Classification and Handling

EquineSync shall maintain a controlled data-classification system that maps categories to access, encryption, display, export, retention, logging, and incident-response requirements. Classification must follow the highest applicable sensitivity when a record combines multiple categories.

5.1 Protected and Sensitive Categories

- Authentication credentials, recovery secrets, security factors, and session material.
- Payment, billing, banking, tax, and financial information.
- Government identifiers and identity-verification material.
- Precise location, routine movement, and sensitive scheduling patterns.
- Information concerning minors and guardian relationships.
- Human medical, disability, injury, accessibility, emergency, and accommodation information.

- Safeguarding, misconduct, complaint, incident, investigation, and disciplinary information.
- Legal documents, agreements, waivers, consent records, authorizations, signatures, and litigation material.
- Private communications and communications metadata where context creates sensitivity.
- Employment, contractor, volunteer, performance, and personnel records.
- Horse health, treatment, medication, ownership, custody, valuation, location, and welfare information where improper access could harm a horse or person.
- Exports, audit evidence, security events, administrative-access records, and incident evidence.
- Biometric, genetic, racial or ethnic, religious, political, union, sexual-life, or other specially regulated categories if ever processed.
- Any category later designated through controlled governance or applicable law.

5.2 Expansion and Narrowing

Protected categories may be expanded through controlled governance review. An existing classification or safeguard may not be narrowed, removed, or materially weakened through implementation, vendor configuration, ordinary policy maintenance, or informal interpretation. Narrowing requires express constitutional amendment or authority expressly delegated for that purpose.

5.3 Context, Combination, and Inference

A data element may become sensitive when combined with other information or used to infer location, health, disability, financial hardship, employment status, family relationships, legal exposure, safeguarding risk, or another protected circumstance. Derived attributes, risk scores, predictions, classifications, and inferred relationships must be classified according to the harm they can create, not merely according to the source fields used to produce them.

5.4 Handling Standard

The downstream Data Classification and Handling Standard must define at minimum collection restrictions, field-level visibility, masking, encryption, searchability, bulk access, export, device storage, offline behavior, logging, retention, deletion, incident severity, and approval requirements for each class. Unknown or disputed classification must default to the more protective treatment until resolved.

6. Collection and Creation of Personal Information

6.1 Collection Preconditions

- A defined purpose, responsible owner, legal or contractual authority, data category, affected population, access model, retention rule, and deletion or disposition path must exist before collection begins.
- High-risk processing requires a documented privacy or data-protection impact assessment before activation.
- Collection must distinguish required information from optional information and explain the practical consequence of declining optional collection.
- Collection from a third party must preserve provenance and must not be treated as verified merely because it entered the platform.

6.2 Prohibited Collection Patterns

- Collecting information for undefined future use.
- Requiring unnecessary sensitive data as a condition of ordinary access.
- Importing address books, messages, location history, or external records without a scoped user action and valid authority.
- Inferring protected or highly sensitive attributes when not necessary for an authorized feature.
- Creating shadow profiles or persistent records about non-users for convenience, enrichment, growth, or speculative future use.
- Using dark patterns, bundled consent, false urgency, or misleading interface design to obtain information or permission.

6.3 Information Supplied About Other People

A user who supplies information about another person must have a legitimate purpose and sufficient authority for the submission. EquineSync shall minimize third-party information, identify its source and status, restrict its visibility, and provide notice or rights handling where required or reasonably practicable.

Emergency contacts, invitees, family members, providers, former owners, staff, witnesses, and people named in horse-centered records must not be converted into marketing prospects, full user profiles, or unrelated analytics subjects merely because their information entered the platform.

6.4 Tracking Technologies, Device Data, and Software Development Kits

Cookies, pixels, software development kits, mobile identifiers, device fingerprinting, crash tools, session replay, telemetry, and similar technologies constitute processing and require inventory, purpose review, vendor review, retention limits, and jurisdiction-appropriate consent or choice. EquineSync shall not deploy advertising trackers or unrelated cross-context tracking.

Session replay or equivalent capture must exclude credentials, payment data, private communications, minors' content, sensitive free text, and other protected fields by design. Tracking technologies on minor-facing surfaces require specific child-privacy review and must default to the least intrusive configuration.

6.5 Data Lineage and Provenance

Material information must retain sufficient provenance to identify source, collection method, authority, verification status, transformations, material inferences, recipient disclosures, and correction history. Loss of provenance must not silently convert allegation, estimate, imported data, or machine inference into verified fact.

7. Lawful Bases, Consent, and Authorization

EquineSync shall maintain a jurisdiction-aware basis register for material processing activities. Where consent is used, it must be informed, specific, unambiguous, appropriately granular, recorded, and as easy to withdraw as to give. Consent must not be used to disguise processing that is mandatory, unavoidable, or based on another authority.

7.1 Consent Integrity

- Consent language must identify material purposes, data categories, recipients or recipient classes, consequences, retention implications, and withdrawal method.
- Silence, inactivity, pre-checked boxes, or continued use after a buried notice change do not constitute valid consent where affirmative consent is required.
- Material changes require renewed notice and, where required, renewed consent.
- Consent records must be versioned, attributable, timestamped, and linked to the notice presented.

7.2 Relationship Authorization

Relationship-based access and authority must be derived from the controlling Identity, Account and Actor Model; Relationship Model; Access Control and Authorization Model; Agreement, Consent and Authorization Model; and Horse Transfer and Continuity policies. A relationship may authorize a narrow operational use without authorizing unrelated disclosure or secondary exploitation.

7.3 Lawful-Basis Discipline

Consent is not a universal basis and must not be selected merely because it appears easier to document. Where a jurisdiction recognizes contract, legal obligation, legitimate interests, vital interests, public task, consent, or another basis, the selected basis must match the real purpose and facts. Reliance on legitimate interests requires a documented purpose, necessity, and balancing assessment where applicable.

Special-category, sensitive, biometric, criminal-offense, children's, location, or other specially regulated processing may require an additional condition beyond an ordinary lawful basis. The processing register must record both layers where applicable.

7.4 Power Imbalance and Conditional Consent

Consent obtained in employment, boarding, instruction, competition, medical, safeguarding, guardian, or other dependency relationships must be examined for voluntariness. Optional uses must not be bundled with core services, safety requirements, required records, or contractual acceptance when a person lacks a realistic choice.

7.5 Withdrawal and Consequence Management

Withdrawal of consent must stop future consent-based processing without invalidating lawful prior processing. Systems must identify downstream recipients, cached copies, scheduled jobs, model contexts, and optional features affected by withdrawal. Any feature loss must be limited to what is genuinely dependent on the withdrawn processing.

8. Minors and Guardian Governance

EquineSync shall treat every person under eighteen as a protected minor for platform-governance purposes, while applying jurisdiction-specific requirements and age thresholds where law provides greater protection.

8.1 Children Under Eight

A child under eight may not receive direct user access, credentials, direct messaging access, social discovery features, or an interactive user account. An authorized adult may maintain child-associated information when necessary for lessons, emergency planning, participation, safeguarding, billing, or other legitimate purposes.

8.2 Ages Eight Through Twelve

A child aged eight through twelve may receive only a limited, guardian-authorized, guardian-linked, age-appropriate experience if EquineSync affirmatively enables it after legal and safety review. The experience must exclude unrestricted messaging, public discovery, independent contractual consent, payment authority, administrative capability, and unnecessary exposure to personal information.

8.3 Ages Thirteen Through Seventeen

A minor aged thirteen through seventeen may receive a protected minor account subject to guardian linkage, authorization, verification, jurisdictional requirements, and heightened controls for communication, visibility, export, location, consent, and safeguarding.

8.4 Guardian Limits and Safeguarding Exceptions

Guardian status does not automatically confer access to confidential safeguarding reports, protected complaints, restricted medical information, legal restrictions, or information whose disclosure could endanger the minor or compromise an investigation. Such restrictions require documented authority, narrow handling, and appropriate review.

8.5 Minor Data Prohibitions

- No sale, licensing, behavioral advertising, unrelated profiling, data-broker disclosure, or general/shared-model training using minor data.
- No public discovery by default and no unsolicited or unrestricted adult-to-minor private messaging.
- No precise-location exposure beyond the minimum necessary for a guardian-authorized feature.
- No use of a minor's refusal of optional processing to deny ordinary participation unless the processing is genuinely necessary.

- No nudges that encourage a minor to disclose more information, weaken privacy settings, remain visible, activate location, or increase engagement against the minor's interests.

8.6 Best Interests of the Child

The best interests of the child must be a primary consideration in the design and operation of any service likely to be accessed by minors. Commercial, growth, engagement, facility-convenience, or analytics objectives may not override safety, dignity, developmental appropriateness, high-privacy defaults, and meaningful child-facing transparency.

8.7 Age Assurance and Verifiable Parental Consent

Guardian linkage is not by itself proof that a legally required parental-consent standard has been satisfied. Before enabling direct access for an individual under thirteen, EquineSync must determine whether verifiable parental consent, guardian notice, age assurance, or another jurisdiction-specific control is required and must implement a validated method before collection or access begins.

Age assurance must be risk-based, proportionate, accurate enough for the relevant decision, accessible, contestable, and the least intrusive reasonably effective method. Where an age band or eligibility signal is sufficient, EquineSync must not collect a full birth date, government identifier, facial image, or broader identity record. Information collected solely to determine age must be purpose-limited, protected, retained only as long as necessary, and must not be reused for advertising, profiling, identity enrichment, or unrelated verification.

A barn, trainer, school, team, employer, or other organization may not substitute its approval for parental or guardian consent unless applicable law expressly permits that arrangement and the role allocation is documented.

8.8 Age Transitions, Guardian Changes, and Disputed Authority

Systems must safely handle birthdays, attainment of legal capacity, guardian revocation, emancipation, custody restrictions, multiple guardians, conflicting instructions, and disputed authority. Turning thirteen, sixteen, seventeen, or eighteen must not automatically expose historical information, expand messaging, activate tracking, or transfer control without a documented transition rule and appropriate notice.

A minor's evolving autonomy, understanding, safety, and legal rights must be considered separately from a guardian's convenience. Where guardian and minor interests conflict, the matter must be escalated under safeguarding, legal, and privacy governance rather than resolved through an automatic account hierarchy.

8.9 Child-Facing Design and Transparency

Minor-facing notices and controls must be concise, age-appropriate, accessible, and presented at the moment a decision matters. High-privacy settings, profiling controls, visibility, communication, and geolocation must default to the most protective state. Active geolocation must be clearly signaled, and visibility to others must return to off at the end of a session where technically and operationally appropriate.

Any launch of access for ages eight through twelve requires a child-specific privacy and safeguarding impact assessment, approved test scenarios, guardian verification, age-appropriate design review, and separate founder or delegated high-risk authorization.

9. Privacy by Default and Access Control

Personal information shall be private by default and accessible only through the narrowest valid combination of authenticated identity, actor capacity, tenant or facility scope, relationship, role, record type, purpose, current need, legal authority, and applicable consent.

9.1 Access Rules

- Shared membership in a barn, facility, organization, team, household, or service network does not create unrestricted access.
- Permissions must be deny-by-default, purpose-scoped, time-aware, and revocable.

- Former roles, expired relationships, terminated employment, withdrawn delegations, and ended sessions must produce prompt prospective restriction.
- Sensitive fields and records may require additional authentication, reason capture, approval, or break-glass procedures.
- Bulk access, export, search, and administrative functions require stronger controls than ordinary record viewing.

9.2 Support and Privileged Access

Support impersonation, database access, privileged tooling, and exceptional content access must be purpose-limited, attributable, time-limited where feasible, logged, reviewable, and subject to separation of duties. Convenience access is prohibited.

9.3 Offline, Cached, and Exported Data

Offline records, caches, device copies, backups, synchronized replicas, and exports remain subject to authorization, confidentiality, retention, revocation, deletion, and incident requirements. Offline operation may not silently preserve access after authority expires or mutate authoritative records outside controlled synchronization rules.

9.4 Horse-Centered Privacy and Transfer Boundary

A horse record may reveal a person's location, finances, routines, employment, family relationships, medical circumstances, disputes, or private communications. Horse-centered design does not convert embedded personal information into freely transferable horse data.

A horse ownership, custody, lease, provider, trainer, or facility transition may transfer only the information necessary and authorized for continuity. Private notes, workforce records, safeguarding material, payment details, communications, credentials, and information about unrelated people must be separated, redacted, restricted, or retained by the proper steward according to controlling transfer, claims, and record-governance canon.

9.5 Household, Guardian, and Multi-Party Access

Household membership, shared billing, co-ownership, marriage, guardianship, emergency-contact status, or shared horse involvement may justify specific permissions but does not create universal access to another person's account or history. Conflicting co-owner, guardian, or household instructions must be resolved through explicit authority rules and may not default to the person with the broadest platform role.

10. Use, Disclosure, and Secondary Processing

10.1 Permitted Uses

- Delivering requested services and authorized operational workflows.
- Authentication, security, fraud and abuse prevention, reliability, support, and legal compliance.
- Audit, dispute management, claims preservation, and evidentiary integrity.
- Aggregate or appropriately protected analytics and validated product improvement under documented controls.

10.2 Prohibited Uses

- Sale or licensing of personal data or identifiable operational data.
- Cross-context behavioral advertising or unrelated commercial profiling.
- Data-broker participation or enrichment for unrelated marketing.
- Using identifiable customer content merely because it is available or technically convenient.
- Identifiable cross-tenant analytics without express constitutional authority and high-risk review.
- Using personal information to train general or shared artificial-intelligence models.

10.3 Disclosure Governance

Every material disclosure must have a defined recipient, purpose, authority, data scope, security expectation, retention expectation, and evidence trail. Recipient access must not exceed the disclosing party's authority. Disclosures to emergency responders, regulators, courts, law enforcement, insurers, or safeguarding authorities must follow documented legal-process and emergency-governance rules.

10.4 Government, Law-Enforcement, and Compulsory Requests

Requests from law enforcement, regulators, courts, or other public authorities require identity verification, legal review, scope validation, minimum-necessary production, secure transmission, and preservation of the request and response. EquineSync should challenge or narrow facially invalid, overbroad, disproportionate, or jurisdictionally defective requests where lawful and appropriate.

EquineSync shall not provide voluntary bulk access, standing back-door access, or informal administrative access to public authorities. Notice to the affected customer or individual should be provided unless prohibited, unsafe, or reasonably likely to compromise a lawful investigation. Emergency disclosure must be based on a documented good-faith belief of imminent risk and must receive prompt post-event review.

10.5 Corporate Transactions, Insolvency, and Change of Control

A merger, acquisition, financing, reorganization, insolvency, asset sale, or change of control does not suspend this Model. Due diligence must use minimum-necessary, protected information; prospective recipients must be bound to confidentiality; and any transfer of personal information must preserve purpose limits, user rights, security, retention, and constitutional prohibitions.

Personal information may not be treated as an unrestricted saleable asset. A materially incompatible post-transaction use requires new authority, notice, rights handling, and any required consent. Founder and privacy-governance review is required before a transaction can alter a constitutional privacy commitment.

11. Product Analytics, Research, and Improvement

EquineSync may use minimum-necessary information to understand reliability, usability, feature performance, security, and service quality. Analytics must prefer aggregate, deidentified, pseudonymized, sampled, or short-lived data where those methods can meet the purpose.

11.1 Analytics Safeguards

- Document metrics, sources, populations, retention, access, and expected decisions before collection.
- Exclude sensitive free text and content payloads unless specifically justified and approved.
- Prevent customer administrators from using analytics to infer protected traits or conduct unjustified surveillance.
- Test deidentification and aggregation against reasonable reidentification risks.
- Do not repurpose product analytics for advertising, data brokerage, or unrelated profiling.

11.2 Research and Benchmarking

Research, benchmarking, publication, and cross-customer comparison require a defined public or product purpose, documented role allocation, appropriate authority, privacy review, and protections against singling out individuals or tenants. Identifiable case studies, testimonials, screenshots, or examples require separate authorization and must not be extracted from ordinary service records by default.

11.3 Deidentified, Anonymous, and Synthetic Data

A claim that information is anonymous must be supported by a documented identifiability assessment that considers singling out, linkability, inference, available external data, motivated actors, population size, and foreseeable technical change. The assessment must be periodically reviewed.

Recipients of deidentified or pseudonymized information must be prohibited from reidentification, unauthorized linkage, and onward disclosure. Synthetic data must be evaluated for memorization, reconstruction, rare-record leakage, and whether source individuals remain reasonably identifiable.

12. Artificial Intelligence and Automated Processing

Artificial-intelligence processing must comply with this Model and the controlling EquineSync AI Governance canon. AI inherits the user's narrowest permissions and may not create access, purpose, retention, or disclosure authority that the user does not possess.

12.1 AI Data Rules

- Customer operational data, including financial, health, safeguarding, and minor data, must not train general or shared models.
- Provider-neutral architecture, minimum-necessary disclosure, contractual no-training protections where available, retention controls, regional controls, and vendor exit capability are required.
- Prompts, retrieved context, outputs, feedback, and model telemetry are personal information when linked or reasonably linkable to a person.
- AI outputs must distinguish fact from inference, disclose uncertainty, preserve source attribution where applicable, and support correction and human review.
- No AI system may make final consequential legal, financial, medical, welfare, safeguarding, ownership, or access decisions.

12.2 Automated Decision Review

Material automated conclusions must be explainable at an appropriate level, contestable, and subject to qualified human review. EquineSync must preserve the inputs, model or rule version, material logic, output, uncertainty, user action, and review outcome when necessary for accountability.

12.3 AI Provider, Retrieval, and Feedback Privacy

AI providers, vector stores, retrieval systems, observability tools, evaluation platforms, and feedback pipelines are processors or recipients subject to Sections 10 and 16. Data sent to them must be minimized, tenant-scoped, permission-filtered before retrieval, protected against prompt or context leakage, and excluded from provider training or unrelated retention where contractually and technically possible.

User feedback on AI output must not silently authorize reuse of the underlying personal information for model training. Evaluation datasets must be purpose-specific, access-controlled, retention-limited, and stripped of unnecessary identifiers.

13. Individual Privacy Rights

EquineSync shall provide a universal baseline rights framework, subject to identity verification, applicable law, and lawful limitations necessary to protect other people, horses, evidence, safety, and legal obligations.

13.1 Baseline Rights

- Access to personal information and meaningful information about its processing.
- Correction of inaccurate or incomplete personal information.
- Deletion, subject to lawful retention and integrity exceptions.
- A portable copy in a usable format where feasible and appropriate.
- Withdrawal of optional consent and restriction of optional processing.
- Review of materially consequential automated conclusions.
- Appeal of a denied or limited privacy request.
- Use of an authorized agent, guardian, or representative where appropriate.

13.2 Rights Limitations

A request may not be used to erase another person's information, alter verified historical truth, destroy legitimate financial or operational records, defeat a legal hold, compromise safeguarding, interfere with an investigation, remove evidence necessary for a claim or dispute, expose confidential security information, or override another person's lawful rights. Limitations must be narrowly tailored, documented, explained, and reviewable.

13.3 Request Verification and Response

- Verification must be proportionate to the sensitivity and risk of the request and must avoid collecting unnecessary new identifiers.
- Requests must be logged, routed, tracked, and completed within the applicable legal or policy deadline.
- The response must identify fulfilled portions, withheld portions, reasons, appeal rights, and any retention or legal-hold effect.
- EquineSync and customers must coordinate when responsibilities overlap, without bouncing the individual between parties.
- Search methods must reasonably cover structured fields, documents, messages, logs, support systems, processor-held copies, and material inferences within scope.

13.4 Minor, Guardian, and Authorized-Agent Requests

A guardian request must be verified for identity, authority, scope, and continuing validity. The rights and safety of the minor, confidential safeguarding restrictions, custody orders, and the minor's own legal capacity must be considered before disclosure or deletion.

A minor who can lawfully exercise a right must receive a direct and age-appropriate path to do so. Authorized agents may act only within verified authority and may not obtain credentials or broader access merely to submit a request.

13.5 Non-Account Holders and Indirectly Collected Information

People whose information appears in EquineSync without an account must have an accessible method to ask whether information is held, challenge inaccuracies, and exercise applicable rights. EquineSync must not require creation of a full account as the price of submitting a privacy request.

13.6 Marketing and Communication Preferences

Individuals must be able to distinguish service, safety, legal, transactional, and marketing communications. Marketing choices and legally required unsubscribe rights must be honored without suppressing essential operational or safety notices. Customer administrators may not use EquineSync records for unrelated marketing unless they possess independent authority and the use is permitted by this Model.

14. Accuracy, Correction, Dispute, and Historical Integrity

Corrections must preserve provenance and must not silently rewrite historically material records. The platform shall distinguish correction of objective error, supplementation of incomplete context, dispute of an allegation, withdrawal of consent, and deletion of information no longer lawfully retained.

Where a disputed record must remain for legal, financial, safety, claims, or audit reasons, the dispute and any resolution must travel with the record to appropriate viewers.

15. Retention, Deletion, Anonymization, and Legal Hold

Retention must be governed jointly by purpose, legal obligation, contractual need, claims exposure, safeguarding, evidentiary value, user expectations, and minimization. No category may be assigned indefinite retention merely because storage is inexpensive.

15.1 Retention Schedule Requirements

- Each material data category must have a triggering event, active period, archive period if any, deletion or anonymization disposition, exceptions, and responsible owner.
- Retention must account for minors, horse ownership transitions, terminated relationships, inactive accounts, financial records, incidents, disputes, and legal holds.
- Backups and disaster-recovery copies require documented expiration and restoration controls so deleted data is not silently reintroduced.

15.2 Deletion

Deletion must be verifiable, appropriately propagated, and resistant to silent resurrection. Where immediate deletion is technically infeasible, data must be isolated from ordinary use and deleted according to a documented, bounded schedule.

15.3 Anonymization and Deidentification

Information may be treated as anonymous only where reidentification is not reasonably likely considering available data, linkability, uniqueness, external datasets, incentives, and foreseeable methods. Pseudonymization reduces risk but does not convert personal information into anonymous information.

15.4 Legal Holds and Preservation

Legal holds, safeguarding preservation, regulatory preservation, and evidence preservation must be scoped, authorized, logged, periodically reviewed, and released when no longer justified. A hold suspends deletion only for the information and purposes within its scope.

15.5 Account Closure, Inactivity, and Relationship End

Account closure, subscription termination, horse transfer, facility departure, employment end, or prolonged inactivity must trigger a documented disposition workflow. The workflow must distinguish personal account data, customer-controlled records, horse continuity records, financial and claims evidence, safeguarding material, exports, and credentials rather than applying a single blanket deletion rule.

15.6 Deletion Propagation and Evidence

Deletion or restriction instructions must propagate to processors, search indexes, caches, replicas, derived datasets, scheduled exports, and AI retrieval stores within documented time limits. EquineSync must obtain or generate evidence of completion proportionate to risk. Backup copies may remain until ordinary rotation only where they are isolated from ordinary use and protected against silent restoration.

15.7 Retention of Privacy-Governance Records

Privacy requests, consent evidence, processing records, impact assessments, disclosures, incident records, and decision evidence require their own retention rules. They must not be deleted merely because the underlying product record was deleted when continued retention is necessary to demonstrate compliance, defend rights, or preserve accountability.

16. Vendors, Processors, and Subprocessors

EquineSync remains accountable for personal information entrusted to external processors within its responsibility. No vendor may receive data merely because integration is convenient or commercially attractive.

16.1 Due Diligence and Contracting

- Assess security, privacy, data location, retention, access, training use, subprocessors, incident response, deletion, audit rights, business continuity, and exit capability before activation.
- Use written terms that limit processing to documented purposes and instructions, require appropriate safeguards, regulate subprocessors, require incident cooperation, and support deletion or return.
- Maintain a current processor and subprocessor register with services, data categories, locations, and approval status.
- Reassess material vendors and changes according to risk.

16.2 Provider Neutrality and Exit

Architecture must minimize dependence on a vendor's proprietary data model, preserve export and migration capability, and support suspension or replacement when a vendor no longer meets legal, security, privacy, availability, or strategic requirements.

16.3 Flow-Down, Change Control, and Verification

Processor obligations must flow to approved subprocessors. Material changes in ownership, service purpose, data location, subprocessors, security posture, training use, retention, or government-access exposure require notice, reassessment, and authority before the change affects EquineSync data.

EquineSync must verify deletion, return, access termination, and migration completion when a processor relationship ends. Contractual promises alone are insufficient where technical or audit evidence is reasonably available.

16.4 No Independent Vendor Use

A processor may not use EquineSync personal information for advertising, sale, product enrichment, independent profiling, unrelated analytics, model training, or its own commercial purposes unless the use has separate lawful and constitutional authority and the affected parties receive required rights and notice. A processor's standard terms may not silently create such authority.

17. International Processing and Transfers

EquineSync shall be architected for international operation but may not represent that it complies with a jurisdiction, target a jurisdiction, or activate jurisdiction-specific processing until a documented readiness assessment and separate launch authority are complete.

17.1 International Readiness Controls

- Jurisdictional mapping of users, customers, establishments, targeting, data locations, processors, and transfer routes.
- Controller and processor allocation, lawful-basis analysis, notice and consent requirements, rights handling, breach obligations, children's protections, and required appointments.
- Approved transfer mechanisms, supplementary safeguards, and transfer-risk assessment where required.
- Regional hosting and support-access controls where legally or operationally appropriate.
- Jurisdiction-specific contract modules and public notices validated before use.

17.2 Launch Prohibition

International-ready design is not international launch authority. No employee, contractor, marketing channel, or customer agreement may claim GDPR, UK GDPR, PIPEDA, provincial, state, or other legal compliance without documented validation and authorized wording.

17.3 Remote Access and Support Transfers

Remote access, support access, administrative access, and vendor access from another country may constitute an international transfer even when the primary database remains in-region. Transfer mapping must therefore address people, credentials, logs, support tools, incident responders, backups, subprocessors, and emergency access, not merely the advertised hosting location.

17.4 Localization and Jurisdictional Segmentation

Where localization, regional hosting, or jurisdictional segregation is required or selected, the boundary must be technically enforceable and reflected in backups, logs, analytics, AI providers, support access, exports, disaster recovery, and subprocessors. Marketing language may not imply localization that the complete processing path does not support.

18. Security, Privacy Incidents, and Breach Response

Privacy protection depends on the controlling Security and Trust Model, Audit Event and Evidence Model, Platform Operations Reliability and Release Model, and incident-response procedures. Security measures must be proportionate to sensitivity, scale, exposure, and consequences.

18.1 Required Capabilities

- Data inventory and classification; least privilege; strong authentication; encryption; secure development; vulnerability management; logging; anomaly detection; backup integrity; recovery; vendor oversight; and workforce training.
- Incident intake, triage, containment, preservation, investigation, risk assessment, notification analysis, remediation, and post-incident review.
- Ability to identify affected people, records, tenants, jurisdictions, processors, and time periods with defensible evidence.

18.2 Notification Governance

Notification decisions must be jurisdiction-aware, timely, evidence-based, and reviewed by qualified legal and privacy authority. Communications must be accurate, useful, and free of unsupported assurances. Customer notification duties and EquineSync notification duties must be allocated in advance and coordinated during an event.

18.3 Notification Clocks and Decision Evidence

Potential notification deadlines must be identified as soon as an incident is reasonably suspected, not after the investigation is complete. The incident record must preserve discovery time, escalation time, affected systems and populations, risk analysis, jurisdictional deadlines, regulator and individual notification decisions, delay rationale, customer coordination, and final remediation.

18.4 Privacy Threat Modeling

Material designs must evaluate privacy abuse cases in addition to security attacks, including insider curiosity, stalking, coercive household access, guardian misuse, facility retaliation, cross-tenant inference, unauthorized horse-location discovery, bulk export, silent tracking, reidentification, overbroad support access, and misuse of legitimate permissions.

19. Transparency, Notices, and Communication

Privacy notices must be layered, audience-appropriate, accessible, and synchronized with actual processing. A public notice may not be used to manufacture authority for practices that are unexpected, disproportionate, or constitutionally prohibited.

19.1 Notice Requirements

- Identify the responsible organization, purposes, categories, sources, recipients, retention approach, rights, complaint path, international implications, and material automated processing.

- Provide just-in-time notice where context materially affects reasonable expectations.
- Use age-appropriate explanations for minors and guardian-facing explanations for guardian-controlled processing.
- Explain material consequences of required and optional processing without coercive design.
- Version notices and preserve evidence of what was presented and when.

19.2 Indirect Collection and Multi-Party Records

Where information is obtained from a customer, guardian, provider, public source, imported system, or another participant rather than directly from the affected person, the notice strategy must address source transparency, lawful exceptions, impracticability, safeguarding, and the risk that notice itself could cause harm. An exception from immediate notice does not eliminate rights, minimization, or accuracy obligations.

19.3 Material Changes

A material change in purpose, data category, recipient, AI use, retention, location, tracking, minor access, or rights must receive advance privacy review. Notice updates must be prominent and appropriately timed. Continued use alone must not be treated as consent where affirmative consent is legally or constitutionally required.

20. Workforce Privacy and Confidentiality

EquineSync shall limit workforce monitoring and internal access to legitimate, proportionate purposes. Workforce members must receive role-specific confidentiality and privacy training and remain bound after their access or employment ends.

20.1 Workforce Controls

- Role-based access, separation of duties, background screening where appropriate, confidentiality commitments, periodic recertification, and prompt offboarding.
- No browsing of customer or user information out of curiosity, personal interest, or convenience.
- No use of production data in development, demonstration, sales, support training, or test environments unless specifically authorized and appropriately protected.
- Administrative actions and exceptional access must create attributable audit evidence.

20.2 Monitoring and Internal Investigations

Workforce monitoring must have a defined purpose, lawful authority, proportionate scope, retention limit, access restriction, and notice strategy. Continuous or covert monitoring, keystroke capture, location monitoring, message review, or productivity scoring requires elevated review and may not be justified solely by technical capability.

Internal investigations must preserve need-to-know access, confidentiality, fairness, evidence integrity, and protection against retaliation. Investigation authority does not permit unrestricted access to unrelated customer or employee information.

21. Privacy Impact Assessment and Change Governance

A privacy or data-protection impact assessment is required before processing likely to create high risk, materially expand an existing purpose, introduce a new sensitive category, deploy a new automated system, materially change minor access, enable precise location, conduct large-scale monitoring, perform international transfers, or activate a novel processor.

21.1 Required Assessment Content

- Purpose, necessity, proportionality, categories, populations, roles, lawful authority, data flows, recipients, locations, retention, rights, risks, mitigations, residual risk, alternatives, consultation, approval, testing, monitoring, and review date.
- Specific analysis of minors, vulnerable people, power imbalances, safeguarding, discrimination, reidentification, cross-tenant exposure, and consequences of error or misuse.
- Evidence that less intrusive alternatives were considered.

21.2 Release Gate

A required assessment must be complete and approved before production activation. Unresolved high residual risk requires escalation under Section 22 and may require rejection, redesign, regulator consultation, or founder decision.

21.3 Child and Vulnerable-Person Impact Assessment

Processing likely to involve minors or vulnerable people requires explicit analysis of best interests, age appropriateness, developmental differences, guardian and minor conflicts, communication safety, geolocation, profiling, nudge design, safeguarding, exclusion risk, and the least intrusive age-assurance method. A general product assessment is not sufficient where child-specific risks materially differ.

21.4 Reassessment Triggers

An approved assessment must be reopened when actual use, incident evidence, complaints, legal change, vendor change, model change, new population, new jurisdiction, data combination, scale, or residual risk materially differs from the approved assumptions. Approval does not permanently grandfather processing against later evidence.

22. Privacy Governance, Delegation, and Reserved Authority

Founder-level authorization is initially required for novel or constitutionally exceptional high-risk processing. Authority may later be delegated to a qualified Privacy Officer or duly constituted Privacy Governance Committee, subject to documented scope, competence, independence, conflicts controls, records, and founder notification.

22.1 Founder-Reserved Matters

- Sale or licensing of personal data.
- Targeted advertising, cross-context profiling, or data-broker participation.
- Biometric identification or materially expanded precise-location tracking.
- Any proposal to amend the constitutional prohibition on direct access for children under eight.
- Materially new artificial-intelligence training uses.
- Identifiable cross-tenant analytics.
- Large-scale sensitive-data processing or novel automated decisions with material effects.
- Materially expanded workforce or administrator surveillance.
- Deployment into a new country or materially different privacy regime.
- Narrowing an established constitutional privacy protection unless amendment authority has been expressly delegated.

22.2 Founder Notification for Delegated Decisions

- The founder must be notified when a delegated authorization is under consideration.
- The notice must identify the proposed processing, purpose, affected people, data categories, principal risks, safeguards, alternatives, and decision authority.
- The founder must receive the final decision and an explanation of its reasoning, conditions, material uncertainty, dissent where relevant, monitoring, and review requirements.
- The complete decision record must be preserved as governance and audit evidence.
- Founder notification does not convert delegated authority into founder approval unless the founder affirmatively assumes the decision.

22.3 Privacy Officer and Governance Committee

A designated Privacy Officer must have sufficient competence, access, independence, resources, and authority to raise concerns without retaliation. Where law requires a data protection officer or equivalent role, appointment, independence, reporting line, conflict restrictions, and contact obligations must be separately validated.

A Privacy Governance Committee should include privacy, legal, security, product, engineering, operations, safeguarding, and other expertise appropriate to the matter. Quorum, voting, recusals, dissent, emergency procedure, recordkeeping, and risk-acceptance authority must be defined in its charter. Conflicts must be disclosed and managed.

22.4 Delegation Limits

Delegated authority does not permit a Privacy Officer, committee, executive, product owner, or customer to override an express constitutional prohibition, narrow an established protection, or create production authority beyond the delegation instrument. Silence after founder notice is not approval, waiver, or acquiescence.

22.5 Review Cadence and Triggered Review

This Model and its downstream instruments must receive scheduled review at least annually and triggered review after material legal change, serious incident, new jurisdiction, new minor-access model, new AI training proposal, corporate transaction, substantial architecture change, or evidence that a protection is ineffective. Review may strengthen protections without reopening settled founder decisions; narrowing follows Section 5.2.

23. Records, Evidence, Testing, and Audit

EquineSync shall maintain evidence sufficient to demonstrate compliance with this Model, including data inventories, processing records, role allocations, impact assessments, consent records, rights requests, disclosure records, vendor reviews, transfer assessments, incidents, training, access reviews, exceptions, and governance decisions.

23.1 Testing Requirements

- Test default visibility, role changes, relationship termination, minor protections, guardian exceptions, export controls, deletion, restoration, vendor failure, incident detection, and rights workflows.
- Include negative tests proving that unauthorized actors cannot access, infer, export, or recover protected information.
- Test age transitions, disputed guardianship, non-user rights, tracker blocking, processor deletion, support access, horse transfer, cross-tenant inference, and international-access boundaries.
- Retest after material architecture, vendor, jurisdiction, data-model, or authorization changes.
- Track findings by severity and prevent release when unresolved risk exceeds approved tolerance.

23.2 Metrics and Management Reporting

Privacy metrics must measure control effectiveness rather than merely activity volume. Appropriate measures include unresolved high-risk assessments, rights-request timeliness and quality, deletion propagation, access recertification, privileged-access review, processor exceptions, child-privacy findings, incident detection and notification timing, stale data, tracker inventory drift, and repeat complaints.

Metrics must not encourage premature request closure, underreporting, excessive data collection, or concealment of risk. Material trends and overdue remediation must be reported to the Privacy Officer, Governance Committee, and founder according to approved thresholds.

23.3 Audit Independence and Remediation

Material privacy controls must be periodically reviewed by personnel with sufficient independence from the activity being assessed. Findings require an owner, severity, due date, evidence standard, risk-acceptance authority, and closure verification. Repeated or overdue findings must escalate and may require suspension of the affected feature or processor.

24. Exceptions and Emergency Processing

Exceptions must be narrow, necessary, time-bound, attributable, reviewed, and documented. An emergency may justify temporary processing needed to protect a person, horse, or critical system, but does not erase purpose limitation, minimization, confidentiality, logging, or post-event review obligations.

24.1 Exception Record

- Requestor, approver, legal and canonical authority, affected information, purpose, duration, safeguards, users or systems granted access, review date, termination, and post-event findings.
- Emergency access must expire automatically where feasible and must not become a permanent permission through inertia.

24.2 Non-Exceptionable Prohibitions

An operational exception may not authorize sale or licensing of personal information, behavioral advertising, general or shared AI-model training on customer data, direct access for a child under eight, deliberate circumvention of legal rights, or narrowing of a constitutional protection. No delegated officer, committee, customer, emergency process, or product decision may override these prohibitions. Any proposed change requires a formal constitutional amendment under founder authority and remains unauthorized unless that amendment is expressly adopted.

25. Complaints, Appeals, and Remedies

EquineSync shall provide accessible channels for privacy questions, complaints, appeals, and reports of misuse. Complaints must be acknowledged, investigated by an appropriately independent reviewer, and resolved with a reasoned outcome.

Remedies may include correction, access restriction, deletion, restoration, notification, contract enforcement, disciplinary action, process redesign, vendor suspension, feature suspension, training, or escalation to regulators or law enforcement where required.

Good-faith privacy reports, internal objections, and whistleblower activity must be protected from retaliation. Complaint trends must inform product, training, vendor, and governance review rather than being treated only as isolated support tickets.

26. Relationship to Other EquineSync Canon

This Model operates together with, and does not replace, the following controlling or founder-approved models: Identity, Account and Actor; Access Control and Authorization; Relationship; Agreement, Consent and Authorization; Record Stewardship and Retention; Claims and Retention; Audit Event and Evidence; Communication, Notification and Notice; Security and Trust; External Architecture and Adapter; AI Governance; Financial Truth and Responsibility; Platform Operations Reliability and Release; Horse Transfer and Continuity; and all later canon expressly incorporated.

Where requirements overlap, the interpretation providing the greater coherent protection shall control unless a later constitutional instrument expressly states otherwise and has authority to amend this Model.

27. Required Downstream Instruments

- Privacy Program Charter and governance committee terms.
- Data inventory, data-flow maps, classification standard, and processing register.
- Privacy and data-protection impact assessment standard and template.
- Public privacy notices and jurisdiction-specific supplements.
- Customer data-processing agreement and controller/processor schedule.
- Processor and subprocessor governance standard and public subprocessor list.
- Privacy rights request procedure, verification standard, and appeal procedure.
- Minors and guardian privacy standard, age-assurance assessment, and communication controls.
- Retention schedule, deletion standard, anonymization standard, and legal-hold procedure.
- International transfer and jurisdiction-launch standard.
- Privacy incident and breach-notification playbook.
- Product analytics, telemetry, experimentation, and deidentification standard.
- AI privacy assessment and provider disclosure standard.
- Privileged access, support access, workforce privacy, and production-data handling procedures.
- Privacy training, testing, metrics, audit, and annual review plans.
- Tracking Technology, Cookie, SDK, Telemetry, and Session-Replay Standard.

- Government, Law-Enforcement, Regulator, and Emergency Disclosure Playbook.
- Corporate Transaction, Due Diligence, and Change-of-Control Privacy Standard.
- Non-Account Holder and Indirect Collection Notice Procedure.
- Deidentification, Reidentification Prohibition, Synthetic Data, and Research Standard.
- Child Privacy, Age Assurance, Verifiable Parental Consent, and Age-Transition Control Standard.
- Privacy Threat Modeling and Abuse-Case Standard.

28. Founder Decisions Incorporated

FD-PD01 - Processing Responsibility

Accepted: contextual controller, processor, and independent-controller model.

FD-PD02 - Sensitive Categories

Adopted: protected categories may expand; narrowing requires controlled amendment or expressly delegated authority.

FD-PD03 - Minors

Approved: no direct access under age eight; limited guardian-linked access ages eight through twelve if enabled; protected minor accounts ages thirteen through seventeen. Guardian linkage does not substitute for any legally required verifiable parental consent or age-assurance control.

FD-PD04 - Monetization

Proceed with recommendation: prohibit sale, licensing, behavioral advertising, cross-context profiling, and unrelated monetization.

FD-PD05 - Product Improvement

Proceed with recommendation: permit minimum-necessary operational, security, support, aggregate analytics, and privacy-reviewed improvement uses.

FD-PD06 - Rights

Approved: universal baseline privacy rights with lawful, evidentiary, safeguarding, and third-party-rights exceptions.

FD-PD07 - Default Visibility

Proceed with recommendation: privacy by default, least privilege, and relationship-, purpose-, tenant-, and role-scoped access.

FD-PD08 - International Posture

Option B selected: international-ready architecture for the United States, EU/EEA, United Kingdom, and Canada from inception, without premature compliance claims.

FD-PD09 - High-Risk Authority

Approved: founder-reserved high-risk authority may be delegated to a Privacy Officer or Privacy Governance Committee, with founder notice during consideration and a reasoned explanation of the final decision.

29. Adoption and Implementation Gate

This first draft becomes controlling canon only after controlled review, conflict analysis, founder disposition of any remaining material questions, adoption, checksum verification, and any required lock procedure.

Adoption of this Model will not itself authorize implementation. A separate implementation-readiness assessment must map current systems, gaps, owners, dependencies, migration effects, test scenarios, risks, and staged release gates.

29.1 Explicitly Unauthorized by This Draft

- Production code changes, schema mutation, migration, or permission mutation.
- New data collection, international launch, processor activation, or external data transfer.
- Automated deletion, legal-hold execution, or bulk export changes.
- Biometric processing, behavioral advertising, data sale, or data licensing.
- Training general or shared models on customer or user information.
- Public statements that EquineSync is compliant with GDPR, UK GDPR, COPPA, PIPEDA, state privacy laws, or any other legal regime.
- Public launch or production authority of any kind.

Appendix A - Minimum Processing Record

- Processing activity and business owner.
- Purpose and compatibility statement.
- People and data categories affected.
- Sources, systems, recipients, processors, and locations.
- Controller, processor, joint-controller, or independent-controller allocation.
- Legal or contractual authority and consent details where applicable.
- Access rules, retention, deletion, and legal-hold treatment.
- Security classification and safeguards.
- Rights handling and transparency materials.
- Impact assessment, approvals, monitoring, review date, and evidence location.
- Tracking technologies, automated decision systems, AI providers, derived data, and cross-tenant or international linkages.
- Minor-access, age-assurance, guardian, non-user, and vulnerable-person treatment where applicable.
- Incident-notification allocation, government-request handling, corporate-transaction treatment, and processor deletion evidence.

Appendix B - High-Risk Processing Indicators

- Children or vulnerable people; sensitive information; precise location; biometric or identity verification; large-scale monitoring; employee surveillance; cross-tenant linkage; profiling; consequential automation; new AI training; international transfer; novel technology; systematic observation; inability to provide meaningful choice; significant power imbalance; risk of physical, financial, legal, reputational, safeguarding, or discriminatory harm.
- Session replay, device fingerprinting, hidden tracking, automated age estimation, facial or voice analysis, inferred health or safeguarding risk, household or guardian conflict, bulk export, data enrichment, corporate transaction, large-scale research, or information capable of revealing horse or person location.
- Processing that is difficult to reverse, difficult for the affected person to detect, likely to be misunderstood, or capable of materially changing access, treatment, price, employment, safety, reputation, or legal position.

Appendix C - Constitutional Acceptance Criteria

- No unresolved conflict with controlling EquineSync canon.
- All founder decisions accurately incorporated.

- No language that silently grants implementation, production, public-claim, or international-launch authority.
- Minor protections, no-sale prohibition, AI training limits, privacy rights, and high-risk governance are explicit and testable.
- International readiness is separated from jurisdictional compliance representation.
- Downstream instruments and implementation gates are clearly identified.
- Auditability, contestability, and founder-notification requirements are operationally expressible.
- Verifiable parental consent, age assurance, child best interests, age transitions, and guardian conflicts are separately governed.
- Non-account holders, third-party submissions, tracking technologies, government requests, corporate transactions, and remote international access are within scope.
- Anonymization, pseudonymization, deidentification, synthetic data, and reidentification prohibitions are accurately distinguished.

Appendix D - Reference Authorities and Design Inputs

This Model is a governance instrument, not a legal opinion and not a representation of compliance. Its architecture was informed by the following official sources current as of July 13, 2026. Jurisdiction-specific implementation requires separate legal validation.

- Federal Trade Commission: Children’s Online Privacy Protection Rule and 2025 final amendments, 16 C.F.R. Part 312.
- European Union: Regulation (EU) 2016/679, General Data Protection Regulation.
- United Kingdom Information Commissioner’s Office: data protection by design and by default guidance, updated February 5, 2026.
- Office of the Privacy Commissioner of Canada: PIPEDA fair information principles, including accountability, consent, limiting collection, limiting use/disclosure/retention, safeguards, openness, access, and challenge.
- NIST Privacy Framework principles may be used as a risk-management implementation input, subject to separate adoption and mapping.

Official source links

- FTC COPPA Rule: <https://www.ftc.gov/legal-library/browse/rules/childrens-online-privacy-protection-rule-coppa>
- FTC COPPA 2025 Final Amendments: <https://www.ftc.gov/legal-library/browse/federal-register-notices/16-cfr-part-312-coppa-final-rule-amendments>
- EU GDPR: <https://eur-lex.europa.eu/eli/reg/2016/679/2016-05-04/eng>
- UK ICO Data Protection by Design and Default: <https://ico.org.uk/for-organisations/uk-gdpr-guidance-and-resources/accountability-and-governance/guide-to-accountability-and-governance/data-protection-by-design-and-by-default/>
- Canada OPC PIPEDA Principles: <https://www.priv.gc.ca/en/privacy-topics/privacy-laws-in-canada/the-personal-information-protection-and-electronic-documents-act-pipeda/ppinciple/>

Appendix E - Review Adjustments Incorporated

The reviewed draft incorporates the following material additions identified during constitutional and legal-design review:

- Complete interpretive definitions and jurisdictional applicability rules.
- Best-interests and privacy-harm principles.
- Activity-specific controller and processor role allocation.
- Protection for inferred, combined, and contextually sensitive data.
- Non-user, third-party submission, tracking technology, and data-lineage controls.
- Lawful-basis discipline, power-imbalance safeguards, and consent-withdrawal effects.
- Verifiable parental consent, age assurance, child-specific impact assessment, guardian disputes, age transitions, and child-facing design.
- Horse-transfer privacy separation and multi-party access limits.
- Government requests, emergency disclosures, corporate transactions, and insolvency controls.

- Research, synthetic data, anonymization, and reidentification governance.
- AI retrieval, provider, telemetry, and feedback privacy.
- Rights handling for minors, guardians, authorized agents, and non-account holders.
- Deletion propagation, processor deletion evidence, account closure, and privacy-record retention.
- Remote international access, localization truthfulness, incident clocks, privacy threat modeling, and stronger workforce-monitoring controls.
- Delegation limits, annual and triggered review, effectiveness metrics, independent audit, and non-exceptionable prohibitions.